2. The Electoral Process

Elections have played a major role in the working of India's democracy. Elections and representation are two very important processes in democracy. We know that people's representatives are selected through elections. Elections help to bring a change in power through peaceful means. Different political parties get an opportunity to rule. Policies of the government and life of society also changes. We expect that the representatives we elect should be efficient, honest, and trustworthy and that they should respect the opinion of people. The electoral process should also be free, fair and reliable. To ensure that, the Constitution of India has made provision for an independent Election Commission to administer the election process in India.

The Election Commission of India and the State level State Election Commissions conduct all important elections in our country. The entire process of elections from declaring the date of elections to the declaration of results is carried out under the direction and control of Election Commission. The election process is an inseparable component of a comprehensive democratic process.

In this chapter we will understand the structure, functions and role of the Election Commission. We will also discuss the reforms required to be made in the electoral process.

Do you know?

What is representation? Modern democracy is a representative democracy. In a democracy it is not possible to involve the entire population in the decision-making process. This resulted in the starting of the practice of electing some people on behalf of entire population as representatives who would run the government. The representatives who form the government are expected to be responsible to the people and give preference to the welfare of the people.

Election Commission

In India, the Election Commission is central to the process of elections. Art. 324 of the Indian Constitution has established this autonomous body which consists of one Chief Election Commissioner and two other commissioners.

Do you know?

Sukumar Sen was the first chief election commissioner after independence. In 1921, Sen was selected for Indian Civil Services under the British rule. He was given the charge of the Election Commissioner after the Election Commission was established in 1950. Mr. Sen efficiently handled the responsibility of the Election Commission in extremely adverse conditions.

Sukumar Sen

The President appoints the election commissioners. The Chief Election Commissioner cannot be removed from his post easily or on account of any political reasons. This is necessary so as to preserve the independence of election commission. There is a separate provision made for the expenses of Election Commission.

The Election Commission does not have a separate staff. Government officers, teachers and other employees help the Election Commission to execute the process of elections.

Do you know?

Special campaign to create awareness among voters is run for voter's registration. The National Voter's Day is celebrated for the purpose.

Functions of Election Commission

(1) Preparing the voters list : Every Indian citizen who has completed 18 years of age has a right to vote. To exercise the right to vote, citizen's name must be in the voters list. It is the responsibility of the Election Commission to prepare the list of eligible voters, update the existing voter's list and include the names of new voters. The Election Commission has the authority to issue identity cards to the voters.

Why is it required?

- When candidates have only the condition of age as eligibility, why should they give other information to election commission?
- Why are the candidates required to give the information of their property to Election Commission?

(2) Decide the timetable and the programme of elections : The conduct of elections is entirely the responsibility of the Election Commission. The Election Commission decides when to conduct elections and in how many stages to hold elections in every state.

(3) Scrutiny of the applications of candidates : After the election dates are declared, every political party selects the candidates to contest elections. Some candidates contest the elections independently without the support of any political party. Candidates of political parties as well as independent candidates have to fill the applications which include the information about their own self. The Election Commission scrutinises all the applications and allows the eligible candidates to contest the elections.

(4) Give recognition to political parties : We have a multiparty system in our country. New parties continue to be

Can you tell?

What criteria are laid down by the Election Commission for giving recognition to political parties?

Why is it so?

- Some constituencies are kept reserved for Scheduled caste and Scheduled tribes.
- Every political party has an election symbol.
- At the time of voting and counting of votes, the official representatives of political parties remain present.
- Recognised parties have equal opportunity to present their side before media such as television and radio.

formed. Split in the parties results in the formation of new parties. All political parties are required to be recognised by the Election Commission. Election Commission also has a right to derecognise any political party. The Election Commission also allots election symbols to the political parties.

(5) To resolve any disputes relating to elections : The Election Commission has the responsibility of resolving any disputes that may arise regarding elections. Accordingly, to declare any candidate as disqualified or conduct re-election in a particular constituency is the responsibility of the Election Commission.

Please understand

Voting is our duty as well as a responsibility.

Which two conditions among following is the violation of code of conduct?

- The candidate distributes items of household use.
- Promise made to resolve the water problem if elected.
- To go from door to door to meet voters and request them to vote.
- To appeal on the basis of caste and religion to get support.

Which of these rules would you include in the code of conduct for voters?

Remember this.

Sham Sharan Negi from Himachal Pradesh was the first voter of India. He exercised his right to vote on 25th October 1951 in Loksabha Elections.

Process of elections

Establishment of constituencies
↓
Finalising voter's list
↓
Nomination of candidates and scrutiny of their nomination forms
↓
Election campaign
↓
Actual voting
↓
Counting of votes
↓
Results of elections
↓
Resolution of disputes regarding elections

Restructuring of the Constituency : The total number of members in Loksabha is 543. How are these members elected? Every member represents one constituency. It means there are 543 constituencies of Loksabha. Creating constituencies is the responsibility of the Delimitation Commission. The Delimitation Commission does not succumb to any pressure while restructuring the constituencies.

What is a code of conduct?

To ensure free and fair elections in India, the Election Commission has adopted several measures. The Code of Conduct is one of the measures adopted by the Election Commission. In the last few decades, the Election Commission has used its powers to control malpractices during elections. The Code of Conduct explains the rules that are to be followed by the Government, political parties and voters before elections and during elections. Even the Government cannot violate these rules. Due to the strict observance of the code of conduct in the last few elections, the common voters have become confident.

Challenges in conducting free and fair elections : If we take into account the size of our country and the number of voters, conducting elections becomes a truly challenging task. The Election Commission has to work in accordance with the law while dealing with these challenges. Some of the challenges are mentioned below :

- Misuse of money takes place to a great extent during elections. The Election Commission has to take several measures to stop such a misuse of money.
- Many political parties give election tickets to the candidates with criminal background. This results not only in criminalisation of politics but the Election Commission also faces problems in ensuring that elections are conducted in free environment.
- Another major challenge is violence during elections. The extent of violence has increased significantly during

Do you know?

At the time of first elections, preparing the voter's list was a challenging task. As many people were illiterate, the special procedure of voting was used during elections. 20 lacs steel boxes were made for voting purpose. Election symbols were stuck on the boxes. The voters were given the blank ballot papers which they were supposed to drop in the box having the election symbol of the party they wanted to vote for. This system ensured that even the illiterate people could vote.

elections. All political parties should help The Election Commission to control this violence.

- To retain a continuing influence on politics, leaders give election tickets to their own relatives. This practice creates a family monopoly in politics.

Think.

- How political parties suffer due to family monopoly in the party?
- What do you understand by the system of 'one vote one value'?

Electoral reforms : Elections is a continuous process. The future of democracy depends on elections. Electoral process becomes reliable if election process gets improved. Some reforms are suggested below. What will be its effects according to you?

- To increase participation of women in politics, the political parties should give 50% candidature to women candidates and try to ensure that they get elected.
- Political parties should not give candidature to candidates having criminal background. They should strictly follow the decision given by courts in this respect.
- The Government should take care of election expenses. To ensure that parties will not make misuse of money and mismanagement of money during elections can be stopped.
- Representation of the Peoples Act should be amended so that candidates having criminal background would not be able to participate in elections.

Journey from ballot boxes to EVM machines

The first election in independent India was held in 1951-52. This was the beginning of shaping of democracy through electoral politics. In the initial elections ballot boxes were used for the purpose of voting. The use of EVM machines started from the decade of 1990s. Many things could be achieved because of voting machine. If the voters do not want to vote for any candidate, they could choose an option of 'None of the above' – (NOTA). It has become easy for disabled people (Divyanga) to vote. It reduced the cutting of trees for paper and thereby helped in the protection of environment. It has also been possible to have an early declaration of election results.

Please understand.

General elections : Loksabha elections held after every five years are called general elections.

Midterm elections : If the elected government loses its majority before completing its term in the Parliament or if the parties of the coalition government withdraw their support resulting in the loss of majority support for the government and if no alternative government is possible, then elections are held before the completion of the term. They are called midterm elections.

By-elections : If an elected representative in Loksabha, Vidhansabha or the local self-government resigns or due to his/her death his seat becomes vacant, the elections are held for that vacant seat. This is called a by-election.

Do you know ?

Election Commission established an expert committee on 8th October 2010. It was decided to add a new facility – Voter Verified Paper Audit Trail in EVM machines. All political parties supported this. Because of this facility the voters can verify whether the vote cast is registered properly. The purpose of this important step is to stop malpractices in elections.

In this chapter we studied the electoral process from various angles. In the next chapter we will study the political parties in India.

Exercise

1. Choose the correct option from the given options and complete the sentences.

(1) The Election Commissioner is appointed by the ..... .

(a) President (b) Prime Minister
(c) Speaker of Loksabha
(d) Vice President

(2) ..... was appointed as the first Chief Election Commissioner of independent India.

(a) Dr. Rajendra Prasad
(b) T.N. Sheshan
(c) Sukumar Sen
(d) Neela Satyanarayan

(3) Constituencies are created by ..... committee of the Election Commission.

(a) Selection (b) Delimitation
(c) Voting (d) Timetable

2. State whether the following statements are true or false. Give reasons for your answer.

(1) The Elections Commission lays down the code of conduct during elections.

(2) Under special circumstances the Election Commission holds re-elections in a particular constituency for a second time.

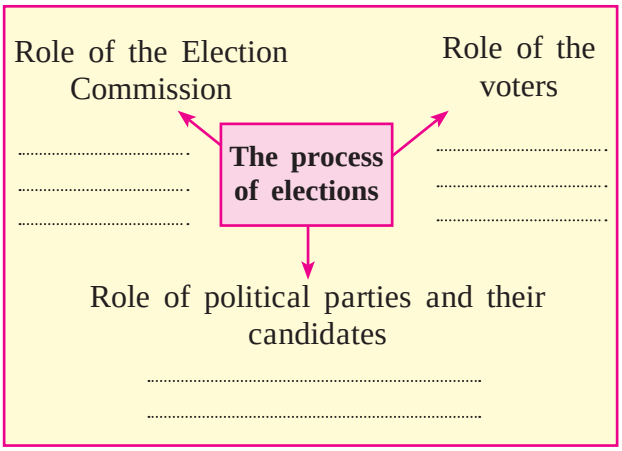
(3) The state government decides as to when and in how many stages the elections would be held in a particular State.

3. Explain the concept.

(1) Reorganising the constituencies

(2) Midterm Elections

4. Complete the following picture.



5. Answer in brief.

(1) Explain the functions of the Election Commission.

(2) Write some additional information about post of the Election Commissioner.

(3) Explain the meaning of Code of Conduct.

Project

Organise a mock poll in the school to understand the process of voting.

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